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Case Number: 25STCV31704 Hearing Date: September 1, 2026 Dept: 836

APPLICATIONS (3) FOR RIGHT TO ATTACH ORDER

Date: 9/1/26

(1:30 PM)

Case: FH Vicente LLC v. Lucky14 Inc., et al. (25STCV31704)

TENTATIVE RULING:

Plaintiff FH Vicente LLC's application for right to attach order with respect to defendant Lucky14 Inc. is GRANTED IN PART. Plaintiff FH Vicente LLC's application for right to attach order with respect to defendant Sean Jahanbigloo is GRANTED IN PART. Plaintiff FH Vicente LLC's application for right to attach order with respect to defendant Elham Jahanbigloo is GRANTED IN PART.

As for each application, pursuant to CCP §484.090, the Court finds: (1) the claim is one upon which attachment may be issued; (2) plaintiff has established the probable validity of the claim; (3) attachment is not sought for any purpose other than recovery on the claim; and (4) the amount to be attached is greater than zero.

Plaintiff FH Vicente LLC's claims against defendants Lucky14 Inc. dba Juan Juan Salon, Sean Jahanbigloo, and Elham Jahanbigloo are for amounts due under a written lease agreement and an accompanying guaranty agreement, respectively, whereby plaintiff agreed to lease a commercial property to defendant Lucky14 Inc. ("Lucky14"). On November 30, 2011, plaintiff's predecessors-in-interest and Lucky14 entered into a commercial lease agreement for the property located at 11674 San Vicente Boulevard, Los Angeles, California 90049 ("Property"). (Fields Decl. ¶ 3 & Ex. A.) Around the time that the Lease had been executed, defendants Sean Jahanbigloo and Elham Jahanbigloo (collectively "Guarantors") signed a Guaranty on November 30, 2011 in which they personally guaranteed the indebtedness of Lucky14 as it pertained to amounts owed under the Lease for the Property. (Fields Decl. ¶¶ 9-10 & Ex. B.)

Before the Lease was amended for the eighth time, plaintiff purchased the Property and assumed the role of landlord under the Lease; the Eighth Amendment to the Lease was entered on September 22, 2025. (Fields Decl. ¶¶ 4-5, Ex. A at pdf. pg. 61-62.) In connection with this agreement, the base rent for the Property was $8,666.67 for the period of September 18 through September 30, 2025, and the base rent increased to $20,000 per month thereafter. (Fields Decl. ¶¶ 4, 11.) The parties also agreed that the term of the Lease would expire on December 31, 2025. (Fields Decl. & Ex. A [Eighth Amendment at § 1].) Additionally, under Sections 3.1(t), 5.2, 5.3, and 5.4 of the Lease, Lucky14 was responsible for paying charges that included its share of taxes, assessments, insurance and other operating expenses of the Property. (Fields Decl. ¶ 7; Ex. A, §§ 3.1(t), 5.2, 5.3, and 5.4.) Lucky14's share of these expenses is 67%. (Fields Decl.; Ex. A § 3.1(y).) In addition, if Lucky14 remained in possession of the Property following the end of the Lease, then the holdover rent would be equal to 150% of the monthly base rent then in effect. (Fields Decl. ¶ 6; Ex. A §§ 16.1-16.2.)

Lucky14 failed to pay any base rents in connection with the Eighth Amendment. (Fields Decl. ¶¶ 12-13.) On October 18, 2025, plaintiff served Lucky 14 with a Three-Day Notice to Pay Rent or Quit demanding payment of $31,533.34. (Fields Decl. ¶ 14 & Ex. C.) Lucky14 failed to cure the defect. (Fields Decl. ¶ 15.) After the expiration of the Lease on December 31, 2025, Lucky14 remained in possession of the Property. (Fields Decl. ¶¶ 16-17.) Plaintiff then initiated an unlawful detainer action against Lucky14, during which Sean filed an answer, asserting that he was the party in possession of the Property. (Fields Decl. ¶ 19.) Ultimately, plaintiff was awarded possession of the Property and unpaid rent in the amount of $31,533.34, plus holdover damages of $81,333.74, for a total award of $112,867.08. (Fields Decl. ¶ 20 & Ex. D.) By April 2026, defendants left the Property, but plaintiff discovered that defendants had failed to keep the property in good condition, which violated Sections 11.1 and 17.1 of the Lease, and led to additional charges.

(Fields Decl. ¶¶ 7, 21-22.) In total, Lucky14 owes plaintiff an outstanding balance of $256,514.46, excluding attorney fees and costs. (Fields Decl. ¶ 24 & Ex. E.) However, plaintiff acknowledges that this amount should be reduced by $112,867.08 to reflect the portion covered by the unlawful detainer judgment. (MPA at ¶ 7:11-19.)

As for Sean Jahanbigloo, attachment is proper against him because his breach of the Guaranty is tied to his trade, business, or profession. (CCP § 483.010(c).) Sean Jahanbigloo executed the Eighth Amendment in his capacity as CEO. (See Fields Decl. Ex. A at pg. 62.) He also signed the Lease and the other seven amendments as a representative of Lucky14. (See Ex. A.) The Court finds that this evidence is sufficient to show that the breach of guaranty claim against Sean as a Guarantor arises from the conduct of his business. (See CCP § 483.010(c).) The Court notes that Sean Jahanbigloo filed an answer in the underlying unlawful detainer action, claiming to be in possession of the property, and the judgment in that case reflects that it was also entered against him. (Fields Decl. ¶¶ 18, 20; Ex. D.) Accordingly, Sean Jahanbigloo owes an outstanding balance of $256,514.46, which should be reduced by $112,867.08 to reflect the portion covered by the unlawful detainer judgment against him.

Similar to Sean Jahanbigloo, attachment is also proper as to Elham Jahanbigloo per CCP § 483.010(c) because he signed the Lease and the subsequent seven amendments as a representative of Lucky14 (see Ex. A), which is sufficient to demonstrate that the Elham Jahanbigloo’s breach of guaranty obligation arises from the conduct of his business. (See CCP § 483.010(c).) Accordingly, Elham Jahanbigloo owes the outstanding balance of $256,514.46.

The Court notes that Sean Jahnbigloo filed an untimely opposition on August 27, 2026, and Ealham Jahanbigloo thereafter filed a joinder in the untimely opposition. Even if the Court were to the Opposition, it only relies on the defendants’ own verified cross-complaint to contest the requested applications. A defendant may oppose on the ground that his or her cross-complaint or answer has or will contain a claim which should be offset against the plaintiff’s, and which is supported by sufficient evidence for a prima facie case of attachment against the plaintiff. (See CCP § 483.015(b)(2); Lydig Construction, Inc. v. Martinez Steel, (2015) 234 Cal.App.4th 937; Pos-A-Traction, Inc. v. Kelly Springfield, (C.D. Cal. 1999) 112 F.Supp.2d 1178, 1183.) Here, however, Sean and Elham Jahnbigloo do not meet their burden of making out a prima facie case for the claims raised in their cross-complaint they submit no meaningful supporting evidence to support their claims for tortious interference with business relations or unfair competition.

Plaintiff also seeks to attach $135,000 for estimated attorney fees and $15,000 in costs. (Apps. ¶ 8.) The recovery of reasonable attorney's fees is permitted under the lease agreement and guaranty. (Ex. A, § 35.3(a) & Ex. B at ¶ 15.) Based on the nature of this case, the amounts in controversy, and the litigation to date, the Court finds that application of the fee schedule set forth in Local Rule 3.214(a) for a contested case arising from contract should apply. Thus, attachment for attorney's fees should be limited to $8,400.20 ($5,270 plus ([$256,514.46-$100,000] x 2%)). As for costs, plaintiff has only shown that it has incurred $3,500 in costs.

Plaintiff also seeks prejudgment interest in the amounts of $12,044.16 against Lucky14 and Sean Jahanbigloo and $21,505 against Elham Jahanbigloo. (Gevorkian Decl. ¶¶ 5-6, 8.) These amounts for prejudgment interest are reasonable.

Lastly, plaintiff acknowledges in Reply that the amounts of attachment should be reduced by $18,200 to account for the security deposit to be credited toward the amount owed by defendants. (Reply at 2.)

With respect to the property that plaintiff seeks to attach, plaintiff moves to attach any property of defendant Lucky14 per CCP § 487.010(a) and CCP § 488.300, et seq. Section 487.010(a) states that, where the defendant is a corporation, all corporate property for which a method of levy is provided in CCP § 488.300 et seq. is subject to attachment.

As for the Guarantors, plaintiff seeks to attach property permitted under CCP § 487.010(c)(1)-(12).
As for Elham Jahanbigloo, plaintiff also permissibly seeks to attach his real property located at 430 N. Croft Ave, Los Angeles, CA 90048-2509. (Apps. re: Guarantors at ¶ 9(c); Attachment 9(c).)

Based on the foregoing, the Court finds that plaintiff has demonstrated the probable validity of success of its breach of contract claims against defendants based on the lease agreement and guaranty for a readily ascertainable amount as follows:

(1) As to Lucky 14: $149,392.74
($143,647.38 outstanding balance [less credit for the unlawful detainer judgment] + $8,400.20 attorney's fees + $3,500 costs + $12,044.16 in prejudgment interest - $18,200 security deposit);

(2) As to Sean Jahanbigloo: $149,392.74
($143,647.38 outstanding balance [less credit for the unlawful detainer judgment] + $8,400.20 attorney's fees + $3,500 costs + $12,044.16 in prejudgment interest - $18,200 security deposit); and

(3) As to Elham Jahanbigloo: $262,258.82
($256,514.46 outstanding balance + $8,400.20 attorney's fees + $3,500 costs + $12,044.16 in prejudgment interest - $18,200 security deposit).

Accordingly, the Court GRANTS the requests for orders of attachment as to each defendant in the amounts stated above. Writ will issue upon the posting of bonds in the amount of $10,000 for each defendant. (CCP § 489.220.) The Court will sign the proposed orders electronically received on May 27, 2026 and make necessary modifications consistent with this ruling.